

STATE OF NEW YORK

4280--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 3, 2025

Introduced by M. of A. BORES -- read once and referred to the Committee on Racing and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to requiring mobile sports wagering operators to establish default betting limits on their platforms and to notify authorized sports bettors of their ability to opt-out of the default betting limits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "choice in responsible gaming act".

3 § 2. The racing, pari-mutuel wagering and breeding law is amended by
4 adding a new section 1367-b to read as follows:

5 § 1367-b. Mobile sports wagering; default betting limits. 1. For the
6 purposes of this section, "default betting limit" shall mean a defined,
7 maximum monetary amount that an authorized sports bettor may wager
8 through a mobile sports wagering platform over a defined period of time.

9 2. All mobile sports wagering operators shall implement default
10 betting limits on their mobile sports wagering platforms. The default
11 betting limit shall be determined by the commission prior to the effec-
12 tive date of this section and shall be based on the best practices to
13 encourage responsible gambling.

14 3. When an authorized sports bettor registers for a mobile sports
15 wagering operator's platform, such authorized sport bettor shall be
16 opted-in to the default betting limit. Authorized sports bettors who are
17 already registered for the mobile sports wagering platform prior to the
18 effective date of this section shall also be opted-in to the default
19 betting limit. All authorized sports bettors shall have the option to
20 opt-out of the default betting limit.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 4. The mobile sports wagering operator or platform shall notify
2 authorized sports bettors of the existence of the default betting limit
3 and the option to opt-out at the time of registration. For authorized
4 sports bettors already registered for the mobile sports wagering plat-
5 form prior to the effective date of this section, such authorized sports
6 bettors shall be notified that they have been opted-in to the default
7 betting limit and that they have the option to opt-out.

8 § 3. Paragraph b of subdivision 16 of section 1367 of the racing,
9 pari-mutuel wagering and breeding law, as added by section 3 of part Y
10 of chapter 59 of the laws of 2021, is amended to read as follows:

11 (b) Any person, firm, corporation, association, agent, or employee who
12 knowingly violates any procedure implemented under this section, [~~or~~]
13 section thirteen hundred sixty-seven-a of this title, or section thir-
14 teen hundred sixty-seven-b of this title, shall be liable for a civil
15 penalty as described in section one hundred sixteen of this chapter
16 which shall accrue to the state and may be recovered in a civil action
17 brought by the commission.

18 § 4. The opening paragraph of subdivision 1 of section 1367 of the
19 racing, pari-mutuel wagering and breeding law, as amended by section 3
20 of part Y of chapter 59 of the laws of 2021, is amended to read as
21 follows:

22 As used in this section [~~and in~~], section thirteen hundred sixty-sev-
23 en-a and section thirteen hundred sixty-seven-b of this title:

24 § 5. This act shall take effect on the one hundred eightieth day after
25 it shall have become a law. Effective immediately, the addition, amend-
26 ment and/or repeal of any rule or regulation necessary for the implemen-
27 tation of this act on its effective date are authorized to be made and
28 completed on or before such effective date.